

26STCV15769 26STCV15769

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Case Number: 26STCV15769 Hearing Date: September 17, 2026 Dept: 316

BACKGROUND

This case is a quiet title action.

On May 18, 2026, Somsri Lertsmitivanta filed a complaint against Sumalai Sapphaithoon. The complaint alleges six causes of action.

On June 10, 2026, Sapphaithoon (hereinafter referred to as “Cross-Complainant”) filed a cross-complaint against Lertsmitivanta and Ampaunchit Wiwatniwong (hereinafter collectively referred to as “Cross-Defendants”).

On June 30, 2026, the Court issued a Minute Order relating this action with another currently pending action (i.e., Case No. 25STCV16399).

On July 30, 2026, Cross-Defendants filed a Special Motion to Strike Pursuant to Code of Civil Procedure section 425.16 (Anti-SLAPP).

On August 17, 2026, Cross-Complainant filed an opposition.

On September 4, 2026, Cross-Defendants filed a reply brief in support of the motion.

TENTATIVE RULING

Cross-Defendants' Special

Motion to Strike Pursuant to Code of Civil Procedure section 425.16 is DENIED.

LEGAL STANDARD

Code of Civil

Procedure section 425.16, subdivision (a) provides that "[a] cause of action against a person arising from any act of that person in furtherance of the person's right of petition or free speech under the United States Constitution or the California Constitution in connection with a public issue shall be subject to a special motion to strike, unless the court determines that the plaintiff has established that there is a probability that the plaintiff will prevail on the claim."

REQUEST FOR JUDICIAL

NOTICE

Cross-Defendants request

the Court take judicial notice of four exhibits: (1) the Verified Complaint filed May 18, 2026, in this action, Case No. 26STCV15769; (2) the Cross-Complaint filed June 10, 2026, in this action; (3) the Complaint for Avoidance of Voidable Transfers filed June 5, 2025, in *Sapphaithoon v. Wiwatniwong, et al.*, Case No. 25STCV16399; and (4) the Register of actions in Case No. 25STCV16399 showing that the first-filed avoidance action remains pending.

The Court shall take

judicial notice of the filing of these exhibits and the status of Case No. 25STCV16399 as records of this Court. (See Evid. Code, § 452, subd. (d)(1).)

DISCUSSION

I.

"Arising

From" Protected Activity

The Court finds that the cross-complaint does not arise from Cross-Defendants engaging in protected activity pursuant to their right of petition or free speech.

In determining whether to grant these motions, the court must engage in a two-step process. (See *Simpson Strong-Tie Co., Inc. v. Gore* (2010) 49 Cal.4th 12, 21.) First, the moving party must meet the threshold burden of showing that the opposing party's cause of action arises from the moving party engaging in protected activity pursuant to their right of petition or free speech. (See *ibid.* [citing Code Civ Proc., § 425.16, subd. (b)(1)].)

"A cause of action 'arising from' defendant's litigation activity may appropriately be the subject of a section 425.16 motion to strike. 'Any act' includes communicative conduct such as the filing, funding, and prosecution of a civil action." (*Rusheen v. Cohen* (2006) 37 Cal.4th 1048, 1056 [citations omitted].) Furthermore, "any written or oral statement or writing made in connection with an issue under consideration or review by a legislative, executive, or judicial body, or any other official proceeding authorized by law" is also protected. (Code Civ. Proc., § 425.16, subd. (e).)

Once the moving party establishes that they engaged in protected activity, they must show that the opposing party's cause of action arises from the moving party engaging in the protected activity. (See *Simpson Strong-Tie Co., Inc. v. Gore* (2010) 49 Cal.4th 12, 21.) A cause of action arises from protected activity only when that activity underlies or forms the basis for the claim, not when it merely supplies evidence or context. (See *Park v. Board of Trustees of Calif. State Univ.* (2017) 2 Cal.5th 1057, 1063.) Therefore, a cause of action will be struck when the protected activity "itself is the wrong complained of." (*Id.* at 1060.)

When ruling on this motion, courts "should consider the elements of the challenged claim and what actions by the defendant supply those elements and consequently form the basis for liability." (*Ibid.*)

Here, in 2025, Cross-Complainant

filed an action against Cross-Defendants to void the transfer of the subject property (i.e., Case No. 25STCV16399). (See RJN, Exh. 3.) That action remains pending. (See RJN, Exh. 4.) Thereafter, Cross-Defendant Lertsmitivanta commenced the present action against Cross-Complainant to obtain quiet title of the subject property (i.e., Case No. 26STCV15769). (See RJN, Exh. 1.) Thereafter, Cross-Complainant filed the cross-complaint against Cross-Defendants seeking the avoidance of transfers. (See RJN, Exh. 2.) In the cross-complaint, Cross-Complainant briefly references 2025 action, Cross-Defendant Lertsmitivanta's complaint in this action (i.e., Case No. 26STCV15769), and the default judgment entered against Cross-Defendant Chan and in favor of Cross-Complainant in the underlying financial elder abuse action and appeal of that judgment. (See RJN, Exh. 2, ¶¶ 24-28.)

Cross-Defendants contend that Cross-Complainant's action is prohibited because it arises from protected judicial or litigation activity. (See Motion, p. 4:6-10.)

The Court disagrees with Cross-Defendants' position. The purpose of the cross-complaint is to prevent the transfer of the subject property so that it can be used to satisfy Cross-Complainant's judgment in the sum of \$1,405,671.39. (See RJN, Exh. 2, Relief ¶¶ 1-6.) The Court finds no basis for Cross-Defendants' contention that the cross-complaint is intended to punish them for filing this present action (i.e., 26STCV15769) or any other litigation activity. (See Motion, p. 5:19-24.) Furthermore, Cross-Complainant's reference to this present action (i.e., 26STCV15769), their other pending action (i.e., Case No. 25STCV16399) and the default judgment in the underlying elder abuse matter entered against Cross-Defendant Chan simply provides context for the cross-claims. (See Opp'n, p. 8:6-10 [citing *Baral v. Schnitt* (2016) 1 Cal.5th 376, 394].) The cross-complaint does not seek to establish a basis of liability against Cross-Defendants based on the complaint or any other litigation activity. Rather, it effectively restates the request made by Cross-Complainant in the Complaint in Case No. 25STCV16399. To the extent the complaint in that matter and the cross-complaint in this matter are duplicative, that is not a basis to strike under Section 425.16. In sum, the cross-complaint does not arise from protected judicial or litigation activity, but from the 2024 property transfer.

Cross-Defendants cite *Navellier v. Sletten* (2002) 29 Cal.4th 82 as support for their position. However, reliance on this case is unpersuasive because the claims at issue there directly

stemmed from defendant filing a counterclaim in federal court. (See id. at p. 90 ["Sletten is being sued because of the affirmative counterclaims he filed in federal court. In fact, but for the federal lawsuit and Sletten's alleged actions taken in connection with that litigation, plaintiffs' present claims would have no basis. This action therefore falls squarely within the ambit of the anti-SLAPP statute's 'arising from' prong."].) Here, the basis of the cross-complaint is not Cross-Defendants' litigation activity or Cross-Defendant Lertsmitivanta filing suit. Rather, as stated above, it is the contested transfer of the subject property that was made in 2024. (See RJN, Exh. 2, Relief ¶¶ 1-6.) Therefore, the present case is readily distinguishable from Navellier.

The Court finds that the cross-complaint does not arise from protected judicial or litigation activity. Therefore, motion does not meet the first prong under Code of Civil Procedure section 425.16.

CONCLUSION

For the foregoing reasons, Cross-Defendants' Special Motion to Strike Pursuant to Code of Civil Procedure section 425.16 is DENIED.

Cross-Defendants are ordered to file and serve an answer to the Cross-Complaint within twenty days of the Court's ruling.